



Carrier Terms

▼ Amazon Relay Terms of Service

Amazon Relay Terms of Service

Accepted

Accepted by Abror on 8/2/23

e to the Amazon Relay program (the “Program”). The terms, conditions, policies, guidelines, rules, and other information collectively with the Terms of Service, this “Agreement”) is entered into by you and Amazon Logistics, Inc. (“AMZL”, “we”, “us” or “our”) when you or your company begins to perform Services (the “Services”) under this Agreement and performed by the business entity that you or your company enters into between Amazon Logistics, Inc. (“AMZL”, “we”, “us” or “our”). If there is a conflict between the Program Policies and any other terms, conditions, policies, guidelines, rules, and other information in this Agreement, you (a) on behalf of yourself and your company, and (b) warrant that you have legal authority to bind your company to the terms, conditions, policies, guidelines, rules, and other information in this Agreement.

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written notice; however, your company may not any October 1 through January 15 period, and an suspended until the next-occurring January 16.

- b. Amazon may terminate this Agreement or suspend immediately by providing written notice to your Law, (ii) your company's Safety Rating becomes notification from a governing authority of a prop otherwise fails to meet any of the safety and com any of the performance requirements set out in th to Amazon (including in connection with Amazo or if your company, its Affiliates, or its Personne retail account is closed or deactivated for any rea Agreement. In addition, Amazon may suspend (c in connection with any investigation of your com
- c. If either party terminates this Agreement, your co Policies (including, for example, any fuel card pr your company by Amazon or a third-party provid
- d. Amazon will not be liable, on account of termina goodwill, or anticipated income or any expenditu
- e. The following sections, along with any other pro Agreement: (i) Independent Contractor Relations and Suspension, (iv) Confidential Information; P Law; Submission to Arbitration, and (ix) Remedi
6. Insurance; Claims for Loss or Damage. Your company company will be liable for delay, loss, or damage to shi
7. Limitation of Liability. TO THE MAXIMUM EXTEN FOR ANY LOST PROFITS OR OTHER SPECIAL, C ARISING FROM OR IN CONNECTION WITH THIS THIS AGREEMENT OR OTHERWISE IN CONNECT AMAZON TO YOUR COMPANY DURING THE PR TO LIABILITY, INCLUDING IN CASES OF NEGLI
8. Indemnification. Your company will defend, indemnify officers, employees, and agents (the "Amazon Parties") reasonable legal fees) ("Claims") incurred by any Ama damage to any property or any other loss due to an act o your company's breach of this Agreement, (c) any infri liability, fraud, or willful misconduct of your company, purporting to perform the Services your company agree Parties to the proportional extent the liability for a Clai misconduct of that Amazon Party as determined by a fi consent to the entry of a judgment or settle any Claim v reasonably satisfactory to the Amazon Parties, and the Parties may take control of the defense at their expense other obligations under this Agreement.
9. Taxes. Your company may charge and Amazon will pa company is legally obligated to charge in connection w the appropriate tax requirements for a valid tax invoice relevant taxing authority, in which case you will not co other taxes (including interest and penalties) or fees ari Amazon may deduct or withhold any taxes that Amazo under this Agreement, and payment to your company a

a. Your company and its Affiliates and their respective officers, directors, employees, agents, representatives, advisors and other personnel, shall

i. protect and not disclose the terms of this Agreement and the Confidential Information

reasonably should be considered confidential

otherwise expressly permitted by this Agreement
Agreement, or (ii) refer to Amazon or its Affiliate

- c. Your company will use any personally identifiable information, including names, addresses, e-mail addresses, telephone numbers, and other information, for the purpose of providing Services. Your company will not disclose or otherwise use such information, in aggregate or otherwise, for any purpose other than the purpose of providing Services. Your company will not aggregate Personal Information. Your company will not sell, license, or otherwise disclose or otherwise use such information, in aggregate or otherwise, for any purpose other than the purpose of providing Services.
 - d. Your company will comply with Amazon's standard of care for the protection of Personal Information. Your company will immediately inform Amazon of any use, transmission, disclosure, corruption, or loss of Personal Information. Your company will cooperate with Amazon and take all actions necessary to prevent such use, transmission, disclosure, corruption, or loss of Personal Information required by Law to retain archival copies of Amazon Information in accordance with Amazon's standard of care for the protection of Personal Information.
14. **Remedies; Entire Agreement; Assignment.** The parties agree that if this Agreement is held to be invalid or unenforceable, the parties shall nevertheless failing to insist on compliance with or exercise any right or remedy available by the party granting the waiver. Amazon may withhold performance of the agreement of the parties relating to the Services and support services under the agreement of the parties different from or in addition to this Agreement, including but not limited to correspondence, tariff, or circular. Your company will not terminate this Agreement without Amazon's prior written consent.
15. **Notice; Electronic/Mobile Communications.** Email or other electronic communication sent to the company has otherwise designated to Amazon will constitute notice. Amazon will not be required to pay for paid post requiring signature on receipt or personal delivery of documents in person or by pre-paid post.

All notices to Amazon should be provided to the fol

Amazon Logistics, Inc.

Attention: Director, Amazon Transportation Service

(if by USPS):
P.O. Box 81226
Seattle, WA 98108-1226

(if by courier):
410 Terry Avenue North
Seattle, WA 98109-5210;

with a copy to:
Attention: General Counsel
(same P.O. box and courier address)

- mazon or other carriers that have accepted these terms from other Carriers. “Provider” refers to the party that owns the Equipment. “Transporter” refers to the party transporting the Equipment.
2. Acceptance. Prior to transporting any Provider’s Equipment, you must inspect the Equipment for any damage or safety defects (including structural damage). If the inspection reveals safety defects, then you must provide acknowledgement of its good condition and the absence of such defects.
 3. Authority and Responsibility. As Transporter, your company will have sole responsibility for the transport of goods in any Equipment, (b) will have sole responsibility for the exclusive care for the cargo in such Equipment and (c) will be responsible for the safe delivery of the cargo.
 4. Representations, Warranties, and Covenants. Your company will: (a) transport Equipment accepted under this Agreement; (b) not perform any maintenance or repairs on the Equipment; (c) exercise reasonable care in protecting each accepted item of Equipment; (d) not lose, damage, or destroy the Equipment; (e) promptly return each accepted item of Equipment in good condition (excepting ordinary wear and tear or as otherwise provided); (f) provide Provider a supplemental Equipment Report, in writing, detailing any damage to or loss of control of the Equipment; (g) only provide Equipment to Provider on a non-exclusive, non-leasehold interest; and (h) with respect to each accepted item of Equipment while in your company’s possession, care, or control, your company will defend, indemnify, and hold harmless Provider and the owners or suppliers of Equipment to Provider (including vicarious, implied in law, or as a result of the fault or negligence of your company) from any damage, cost, or expense (including reasonable legal fees) resulting from a wrongful failure to defend against a claim or suit, or in connection with or arising from or relating to: (i) any death of or injury to any person; (ii) any loss due to an act or omission (including the possession, use, or control of any of their respective Personnel, (B) your company’s fraud, or willful misconduct of your company, its Affiliates, or its agents; (iii) any intentional misconduct of that Provider Party as determined by a court of competent jurisdiction; (iv) any claim or suit that your company will not consent to the entry of a judgment or settle any claim or suit; (v) any claim or suit that your company will use counsel reasonably satisfactory to the Provider Parties; (vi) any claim or suit that your company will not use counsel reasonably satisfactory to the Provider Parties. The Provider Parties may take control of the defense of any claim or suit independent of your company’s other obligations under this Agreement.
 6. LIMITATION OF LIABILITIES. EXCEPT FOR YOUR COMPANY’S OBLIGATIONS UNDER THIS SCHEDULE 1 FOR ANY CLAIM OR SUIT, YOUR COMPANY SHALL NOT BE LIABLE UNDER THIS SCHEDULE 1 FOR ANY INCIDENTAL, INDIRECT, EXEMPLARY, OR PUNITIVE DAMAGES.
 7. Governing Law. Notwithstanding Section 10 of the Agreement, any dispute arising out of or in connection with this Agreement between you and other Carrier, such dispute shall be governed by Delaware law and the venue in the federal and state courts in Wilmington, Delaware.

 **Send via Email**

☐ I have read and agree to the Amazon Relay Terms of Service

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